

tesy.pdf - Version 1

Modified by: admin@example.com
Modified clauses: 1

Termination ===== TERM & TERMINATION. Upon termination, CLIENT shall promptly pay TSN all outstanding amounts due to TSN under this Agreement. The provisions in this document, which by their nature are intended to survive, shall survive the expiration or termination of this Agreement.

Arbitration ===== Any disputes in excess of Five Thousand Dollars (\$10,000) shall be subject to arbitration by a single arbitrator under the auspices of the American Arbitration Association ("AAA"), pursuant to its Commercial Arbitration Rules. Any disputes in excess of Five Thousand Dollars (\$10,000) shall be subject to arbitration by a single arbitrator under the auspices of the American Arbitration Association ("AAA"), pursuant to its Commercial Arbitration Rules. Any disputes in excess of Five Thousand Dollars (\$5,000) shall be subject to arbitration by a single arbitrator under the auspices of the American Arbitration Association ("AAA"), pursuant to its Commercial Arbitration Rules. All arbitration

--- Page 10 --- Master Service Agreement REV .

Governing Law =====
GOVERNING LAW.

Payment Terms =====
PAYMENT TERMS. CLIENT agrees to the following payment terms: a. Payment terms will be determined based on credit application.

Force Majeure ===== FORCE MAJEURE. Any party asserting Force Majeure as an excuse shall have the burden of proving that reasonable steps were taken (under the circumstances) to minimize delay or damages caused by foreseeable events, that all non-excused obligations were substantially fulfilled, and that the other party was timely notified of the likelihood or actual occurrence that would justify such an assertion, so that other prudent precautions could be contemplated.

Confidentiality =====
CONFIDENTIALITY. Confidential Information does not include information that the receiving party can show: (a) is or becomes publicly known or available without breach of this Agreement; (b) is received by a receiving party from a third party without breach of any obligation of confidentiality; or (c) was previously known by the receiving party as shown by its written records. Both parties acknowledge that the breach of any of the confidentiality provisions or other agreements set forth in this Agreement would give rise to irreparable injury to the disclosing/non-defaulting party, which injury would be inadequately compensable in

money damages.